

24STCV32770 24STCV32770

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-12

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Case Number: 24STCV32770 Hearing Date: August 12, 2026 Dept: 512

HEARING DATE: Weds., August 12, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Bazgir

v. Integon Preferred Ins. Co., et al. COMP.

FILED: 12-12-24

CASE NUMBER: 24STCV32770

FAC FILED: 04-10-25

NOTICE: OK

PROCEEDINGS: MOTION

FOR SUMMARY JUDGMENT OR ADJUDICATION

MOVING PARTY: Defendants

Integon Preferred Insurance Company, National General Insurance Company, and
Allstate Insurance Company of California

RESP. PARTY: Plaintiff

Parisa Bazgir

MOTION FOR

SUMMARY JUDGMENT OR ADJUDICATION

(CCP § 437c)

TENTATIVE RULING:

The Moving party is
ordered to submit a new Separate Statement in Support of Defendants' Motion for
Summary Adjudication/Judgment strictly in compliance with the California Rules
of Court, rule 3.1350. Non-compliance may result in denial of the Motion.

The responding party is
required to submit their Separate Statement in Opposition, also strictly in
compliance with California Rules of Court, rule 3.1350.

Moving Parties' Separate
Statement is due by August 14, 2026. The Opposing Party' Statement is due by
August 28, 2026.

The Court CONTINUES the
hearing on the Motion for Summary Adjudication to September 14, 2026 at 9:00
a.m. in Department 512.

On Its own Motion, the
Court CONTINUES the Trial to December 14, 2026 at 9:30 a.m. Final Status
Conference is CONTINUED to December 10, 2026 at 9:30 a.m. in Department 512.
Parties are ordered to comply with Department 512's courtroom rules for trial
preparation.

Moving parties are ordered
to give notice of ruling.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 23, 2026 ☐ Late ☐
☐ None

REPLY: Filed

on July 31, 2026 [] Late [] None

ANALYSIS:

I.

Background

On December 12, 2024, Plaintiff Parisa Bazgir ("Plaintiff") filed the instant action against Defendants Integon Preferred Insurance Company ("Integon Preferred"), National General Insurance Company ("National General"), and Allstate Insurance Company of California ("Allstate") ("Defendants") and Does 1-30.

On April 10, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants.

On September 10, 2025, Plaintiff filed an Amendment to Complaint naming Integon National Insurance Company ("Integon National") as Doe No. 1.

On September 15, 2025, Plaintiff filed a Second Amended Complaint ("SAC").

On October 14, 2025, Integon Preferred filed an Answer to the SAC.

On November 14, 2025, the Court approved the parties' Stipulation and Protective Order. (11/14/25 Order.)

On December 22, 2025, Allstate filed an Answer to the SAC.

On March 3, 2026, Integon National was dismissed.

On May 21, 2026, Defendants filed the instant Motion for Summary Adjudication (the "Motion").

On July 1, 2026, the Court granted in part and denied in part Defendants' Motion for Protective Order. (7/1/26 Order.)

On July 23, 2026, Plaintiff filed an Opposition to the Motion as well as Objections to Evidence Submitted in Support of Defendants' Motion.

On July 31, 2026, Defendants filed a Reply.

II. Procedural Issues

The Court notes the parties submitted defective separate statements in support of the moving and opposing papers. The Court admonishes the parties that a separate statement is meant to be "a concise list of the material facts and the evidence that supports them." (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 875, superseded by statute on other grounds.) It should "provide[] a convenient and expeditious vehicle" to resolve matters in a summary fashion. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 74, *italics added*.) However, the Separate Statements here fail to note which element of which specific cause of action each recitation in the Separate Statement refers. The Separate Statement here fails to comply with the guidelines set forth in California Rules of Court, rule 3.1350.

The Court is neither required nor inclined to scour the briefing and evidence to overcome the burden of a defective Separate Statement. Further, the Court finds the Notice of Motion is confusing as to whether the Motion is being brought as a motion for summary judgment or a motion for summary adjudication. Indeed, the caption states the motion is for summary adjudication but the body of the notice of motion states the motion is for summary judgment. Defendants are cautioned to ensure any notices of motion comport with the body of the motion and the relief requested to the Court.

Based thereon, the Moving party is ordered to submit a new Separate Statement in

Support of Defendants' Motion for Summary Adjudication/Judgment strictly in compliance with the California Rules of Court, rule 3.1350. Non-compliance may result in denial of the Motion.

The responding party is required to submit their Separate Statement in Opposition, also strictly in compliance with California Rules of Court, rule 3.1350.

Moving

Parties' Separate Statement is due by August 14, 2026. The Opposing Party' Statement is due by August 28, 2026.

The

Court CONTINUES the hearing on the Motion for Summary Adjudication to September 14, 2026 at 9:00 a.m. in Department 512.

On

Its own Motion, the Court CONTINUES the Trial to December 14, 2026 at 9:30 a.m. Final Status Conference is CONTINUED to December 10, 2026 at 9:30 a.m. in Department 512. Parties are ordered to comply with Department 512's courtroom rules for trial preparation.

Moving

parties are ordered to give notice of ruling.